

PUBLIC INTERNATIONAL LAW

UNIT IV — Law of the Sea · Airspace · Outer Space

LLB (3 YDC) | 4th Semester | Osmania University

Target: 75+ Marks | Aug/Sep Examination

📋 TABLE OF CONTENTS & STAR RATINGS

SECTION	TOPIC	MARKS	RATING
UNIT OVERVIEW	What's IN, What's NOT, Predictions, Key Numbers	—	—
PART A — Q1	Evolution of Law of the Sea	6	★★★★★★
PART A — Q2	Freedoms of the High Seas	6	★★★★★★
PART A — Q3	Common Heritage of Mankind	6	★★★★★★
PART A — Q4	Legal Regime of Airspace	6	★★★★★★
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PART B — Q1	UNCLOS 1982 — Maritime Zones & Freedoms (Essay)	15	★★★★★★
PART B — Q2	Legal Regime of Airspace — Conventions (Essay)	15	★★★★★★
PART B — Q3	Legal Regime of Outer Space — Treaties & Principles (Essay)	15	★★★★★★
PART C — IRAC 1	Space object falls on State N (2024 Q15)	10	★★★★★★
PART C — IRAC 2	Law of the Sea problem — coastal State rights	10	★★★★★☆
QUICK REVISION	Key Numbers, Conventions, Cases, Mnemonics, Traps	—	—

UNIT IV — OVERVIEW & EXAM STRATEGY

✓ TOPICS COVERED IN THIS UNIT

- Legal Regime of the Seas — Evolution, Maritime Zones, UNCLOS 1982
- Freedoms of the High Seas — 6 freedoms under UNCLOS Art. 87
- Common Heritage of Mankind — The Area, deep seabed
- Legal Regime of Airspace — Paris 1919, Havana 1928, Chicago 1944, Warsaw 1929
- Five Freedoms of Air — Chicago Convention 1944
- Legal Regime of Outer Space — Outer Space Treaty 1967, Rescue Agreement 1968, Liability Convention 1972, Registration Convention 1976, Moon Treaty 1979
- UNISPACE Conferences; India's Space Missions — Chandrayaan-3, Mangalyaan, Gaganyaan

✗ TOPICS NOT IN THIS UNIT

- Sources, Nature of Int'l Law → Unit I
- State Recognition, Succession, Territory → Unit II
- Extradition, Asylum, Diplomatic Immunity, Treaties → Unit III
- UN, ICJ, ICC, WHO, UNESCO → Unit V

🎯 PREDICTED EXAM QUESTIONS (2025)

FROM 2024 PAPER Q10 (Part B): Trace the evolution of the Law of the Sea — directly from this unit

FROM 2024 PAPER Q11 (Part B): Explain the international legal framework governing airspace

FROM 2024 PAPER Q15 (Part C): Country M launches space object — falls on State N — liability — DIRECTLY from Liability Convention 1972

MOST LIKELY Part A: Five Freedoms of Air; Common Heritage of Mankind; Moon Treaty; Freedoms of High Seas

LIKELY Part B: Outer Space Treaty regime; UNCLOS maritime zones full essay

1 2 3 4 CRITICAL NUMBERS TO MEMORISE

MARITIME ZONES (UNCLOS 1982):

Territorial Sea = 12 Nautical Miles (NM)

Contiguous Zone = 24 NM

Exclusive Economic Zone (EEZ) = 200 NM

Continental Shelf = up to 200 NM (extended to 350 NM possible)

High Seas = beyond 200 NM

AIRSPACE CONVENTIONS:

Paris Convention 1919 — first codification of airspace law

Havana Convention 1928 — Americas; complete sovereignty over airspace

Warsaw Convention 1929 — liability for international air carriage

Chicago Convention 1944 — current global framework; ICAO established

Five Freedoms of Air — Chicago 1944

OUTER SPACE TREATIES:

Outer Space Treaty (OST) 1967 — constitution of outer space law

Rescue Agreement 1968 — rescue and return of astronauts

Liability Convention 1972 — absolute liability for space object damage

Registration Convention 1976 — registration of space objects

Moon Treaty 1979 — Moon as common heritage

UNISPACE I (1968), II (1982), III (1999), +50 (2018)



PART A — SHORT NOTES (6 Marks Each)

Definition + 4-5 key points + 1 case + 1 example + exam tip. ~1.5 pages. Time: 8-10 min.

Q1 — Evolution of Law of the Sea ★★★★★

📖 Introduction

The Law of the Sea is the body of international law governing the rights and responsibilities of States in their use of the world's oceans. Its evolution spans centuries — from Grotius' freedom of the seas to the comprehensive UNCLOS 1982 regime.

🔑 Historical Evolution

- Mare Liberum (1609) — Hugo Grotius: 'Freedom of the Seas' — seas are free for navigation and commerce by all nations; no State can claim sovereignty over open oceans. Argued for Dutch right to trade in East Indies against Portuguese monopoly.
- Mare Clausum (1635) — John Selden: Counter-theory — States CAN claim sovereignty over seas. British claimed North Sea.
- 3-Mile Rule (Cannon-shot Rule, 18th century): Territorial sea = range of cannon from shore (~3 NM). States claim sovereignty within cannon-shot.
- Hague Codification Conference 1930: First attempt to codify law of sea — failed to agree on breadth of territorial sea.
- UNCLOS I (1958, Geneva): Four conventions adopted — Territorial Sea & Contiguous Zone; High Seas; Continental Shelf; Fishing and Conservation. Territorial sea breadth still unresolved.
- UNCLOS II (1960, Geneva): Second conference — still failed to agree on territorial sea breadth.
- UNCLOS III (1973-1982, Montego Bay): 9 years of negotiation — produced UNCLOS 1982 (United Nations Convention on the Law of the Sea) — entered into force 1994. Called 'Constitution of the Oceans'.

📌 UNCLOS 1982 = 'Constitution of the Oceans' — 320 Articles + 9 Annexes. Entered into force 1994. India ratified 1995. 168 parties.

📌 *Example: India-Pakistan maritime boundary dispute in Sir Creek area — governed by UNCLOS 1982 principles on delimitation. India's EEZ covers vast areas of Indian Ocean, Arabian Sea, and Bay of Bengal.*

🏛️ **Case: North Sea Continental Shelf Cases (ICJ, 1969)** — ICJ held equidistance principle NOT customary law — equitable principles govern continental shelf delimitation between adjacent/opposite States.

🏛️ **Case: Corfu Channel Case (ICJ, 1949)** — Right of innocent passage through international straits affirmed — Albania could not close Corfu Channel to British warships in peacetime.

💡 **EXAM TIP:** Timeline: Grotius (1609) → Cannon-shot rule → Hague 1930 → UNCLOS I 1958 → UNCLOS II 1960 → UNCLOS III/1982. '1982 = Constitution of Oceans'. India ratified 1995.

Q2 — Freedoms of the High Seas ★★★★★

Definition

The High Seas are the parts of the sea beyond national jurisdiction — beyond any State's EEZ or territorial waters. The High Seas are open to all States (coastal and landlocked) and no State may subject any part to its sovereignty (UNCLOS Art. 89).

Six Freedoms of the High Seas (UNCLOS Art. 87)

UNCLOS Art. 87: Freedom of the High Seas — open to all States, coastal and landlocked. Comprises at least:

- 1. Freedom of Navigation: All ships of all States have right to sail on the high seas. Flag State has exclusive jurisdiction over its ships on high seas (Art. 92).
- 2. Freedom of Overflight: All aircraft (civil and state) have right to fly over the high seas. No State's airspace extends over high seas.
- 3. Freedom to Lay Submarine Cables and Pipelines: States may lay cables/pipelines on the seabed of high seas.
- 4. Freedom to Construct Artificial Islands and Installations: Subject to UNCLOS Part VI (continental shelf) and Part XI (Area).
- 5. Freedom of Fishing: All States have right to fish in high seas — subject to treaty obligations and conservation measures (Art. 116-120).
- 6. Freedom of Scientific Research: All States and competent international organizations have right to conduct marine scientific research on high seas.

Limitations on High Seas Freedoms

- Prohibition of piracy: Universal jurisdiction — any State may seize pirate ship/aircraft on high seas (Art. 101-107).
- Prohibition of slave trade: No ship may engage in slave transport (Art. 99).
- Hot pursuit: Coastal State may pursue foreign ship from its waters onto high seas if reasonable grounds for belief ship violated its laws (Art. 111).
- Right of visit: Warships may board ships on high seas suspected of piracy, slave trade, unauthorized broadcasting, stateless ships (Art. 110).
- Flag State jurisdiction: Exclusive — no other State may interfere with ship flying its flag on high seas.

 *Example: Somali pirates attacking commercial vessels in Indian Ocean (2008-2012) — international naval coalition operated under UNCLOS universal jurisdiction over piracy provisions. Indian Navy participated.*

 **Case: *The Lotus Case* (PCIJ, 1927)** — Turkish and French vessels collide on high seas — PCIJ held flag State (France) had exclusive jurisdiction BUT Turkey also had jurisdiction as nationals affected. Controversial — later modified by UNCLOS Art. 97 (exclusive flag State jurisdiction in collision cases).

 **EXAM TIP:** Mnemonic for 6 Freedoms: 'NOFACS' = Navigation, Overflight, Fishing, Artificial

islands, Cables/Pipelines, Scientific research. UNCLOS Art. 87 = cite always.

Q3 — Common Heritage of Mankind ★★★★★

Definition

'Common Heritage of Mankind' (CHM) is a principle of international law declaring that certain areas and resources are the common property of all humanity — not subject to national appropriation — and must be managed for the benefit of all, including future generations. In UNCLOS 1982, it applies to 'The Area' — the seabed and ocean floor beyond national jurisdiction.

Key Features of Common Heritage of Mankind

- 1. No national appropriation: No State may claim sovereignty or sovereign rights over CHM areas (UNCLOS Art. 137).
- 2. Use for benefit of all mankind: Resources must be exploited for the benefit of mankind as a whole — with particular consideration for developing States (Art. 140).
- 3. Peaceful use only: The Area shall be used exclusively for peaceful purposes (Art. 141).
- 4. Scientific research: Free and open to all — results to be shared (Art. 143).
- 5. Environmental protection: Activities in The Area must protect and preserve the marine environment (Art. 145).
- 6. International Seabed Authority (ISA): Established under UNCLOS to administer The Area and its resources on behalf of mankind.

 UNCLOS Art. 136: 'The Area and its resources are the common heritage of mankind.' Art. 137: No State shall claim or exercise sovereignty or sovereign rights over any part of the Area.

Application of CHM Principle

- The Area = seabed and ocean floor beyond national jurisdiction (beyond EEZ / continental shelf).
- Resources: Polymetallic nodules, cobalt-rich crusts, polymetallic sulphides — rich in metals (manganese, nickel, copper, cobalt).
- Moon Treaty 1979: Extended CHM principle to Moon and other celestial bodies — but very few ratifications (USA, Russia, China not parties).
- Outer Space Treaty 1967: Art. II — outer space including Moon NOT subject to national appropriation — similar CHM spirit but not expressly using the term.

 *Example: India's Nodule Mining Programme: India was the first country to be registered as a Pioneer Investor with ISA (1987) — granted mine site in Central Indian Ocean Basin for polymetallic nodules. India has exclusive rights to develop that site under ISA framework.*

 **Case: Seabed Disputes Chamber (ITLOS Advisory Opinion, 2011)** — ITLOS Advisory Opinion: States sponsoring entities mining in The Area bear responsibility for compliance with UNCLOS — due diligence obligation. CHM principle creates obligations on sponsoring States.

 **EXAM TIP:** CHM = 3 domains: The Area (UNCLOS), Moon (Moon Treaty 1979), Outer Space (OST 1967 spirit). ISA = manager of The Area. India = Pioneer Investor since 1987. CHM ≠ open access — managed for ALL mankind.

Q4 — Legal Regime of Airspace ★★★★★

Introduction

The Legal Regime of Airspace governs the rights and duties of States with respect to the column of air above their territory. Unlike the high seas, airspace above national territory is subject to **COMPLETE AND EXCLUSIVE STATE SOVEREIGNTY** — there is no right of innocent passage for aircraft (unlike ships in territorial sea).

Key Conventions on Airspace

1. Paris Convention 1919

- First multilateral convention on airspace — adopted after World War I aviation experience.
- Established: Complete and exclusive sovereignty of each State over its airspace.
- Created ICAN (International Commission for Aerial Navigation) — precursor to ICAO.
- Permitted scheduled services only by special permission — no automatic right of overflight.
- Limitation: Only League of Nations members — limited to Europe.

2. Havana Convention 1928

- Pan-American convention — covered Western Hemisphere States.
- Affirmed complete sovereignty over national airspace.
- Codified rules on nationality of aircraft, documents, lights and signals.
- Less comprehensive than Paris — regional significance only.

3. Warsaw Convention 1929 (as amended by Hague Protocol 1955, Montreal Convention 1999)

- Governs **LIABILITY** in international air carriage — not airspace sovereignty.
- Original Warsaw 1929: Carrier liable for death/injury of passengers; limits of liability set.
- Hague Protocol 1955: Doubled passenger liability limits.
- Montreal Convention 1999: Modern replacement — unlimited liability for passenger death/injury; strict liability up to SDR 113,100; fault-based above.
- India: Party to Warsaw Convention and Montreal Convention 1999.

4. Chicago Convention 1944 — The Current Framework

- Full name: Convention on International Civil Aviation 1944.
- Replaced Paris Convention — applies globally.
- Established ICAO (International Civil Aviation Organisation) — UN specialized agency.
- Core principle: Art. 1 — 'Every State has complete and exclusive sovereignty over the airspace above its territory.'
- Art. 2: Territory = land areas + territorial waters.
- Art. 3: Applies to **CIVIL** aircraft only — State aircraft (military, customs, police) governed by special rules.
- Art. 5: Non-scheduled flights — right to fly through and make non-traffic stops without prior permission.

- Art. 6: Scheduled services — require special permission or authorization from State overflown.
- Two Transit Agreements emerge from Chicago: Two Freedoms Agreement + Five Freedoms Agreement.

📌 Chicago Convention 1944, Art. 1: Complete and exclusive sovereignty over national airspace. ICAO established. Headquarters: Montreal, Canada.

📌 *Example: When a foreign commercial airliner crosses Indian airspace: it requires India's permission under Chicago Convention. Military aircraft need special bilateral agreements. No automatic right of overflight.*

📌 **Case: KAL Flight 007 (1983)** — Korean Air Lines Boeing 747 shot down by Soviet fighter jets after straying into Soviet airspace. Led to amendment of Chicago Convention — ICAO condemned use of weapons against civil aircraft in flight. Chicago Art. 3 bis added — States cannot use weapons against civil aircraft.

📌 **Case: Aerial Incident of 27 July 1955 (Israel v. Bulgaria, ICJ, 1959)** — El Al aircraft shot down over Bulgaria. ICJ dismissed for lack of jurisdiction — but affirmed principle: shooting down civil aircraft = violation of int'l law.

💡 EXAM TIP: Convention timeline: Paris 1919 → Havana 1928 → Warsaw 1929 (liability) → Chicago 1944 (current). Chicago = COMPLETE sovereignty + ICAO. Warsaw/Montreal = liability only. Sovereignty over airspace = absolute (unlike sea).

Q5 — Five Freedoms of Air ★★★★★

📖 Introduction

The Five Freedoms of Air are the rights negotiated under the Chicago Convention framework (1944) governing international air transport. They define the extent to which airlines of one State may operate in another State's airspace and airports.

🟡 The 'Freedoms of Air' are NOT freedoms from sovereignty — they are NEGOTIATED RIGHTS granted bilaterally between States. Chicago Convention itself does not grant all five; they come from associated agreements.

➔ The Five Freedoms

Freedom	Right Granted	Example
1st Freedom	Right to fly OVER another State's territory without landing (transit privilege)	Air India flight from Delhi to London flies over Pakistan, Iran, Turkey — overfly rights
2nd Freedom	Right to make TECHNICAL STOPS in another State (refuelling, repairs) — no passengers loaded/unloaded	Air India Delhi-New York stops in Frankfurt to refuel — no commercial activity
3rd Freedom	Right to carry passengers/cargo from HOME State to ANOTHER State	Air India carries passengers from Delhi (India) to London (UK) — traffic from India
4th Freedom	Right to carry passengers/cargo FROM ANOTHER STATE back to HOME State	Air India carries passengers from London back to Delhi — traffic to India
5th Freedom	Right to carry passengers/cargo between TWO FOREIGN STATES on route that starts/ends at HOME State	Air India Delhi→London→New York — carry London-New York passengers (UK to USA leg)

+ Additional Freedoms (6th-9th — Informal)

- 6th Freedom: Combination of 3rd and 4th — carry traffic between two foreign States via home State. (e.g., Emirates carries London-Dubai-Singapore passengers — via Dubai hub).
- 7th Freedom: Operate entirely BETWEEN two foreign States without touching home State — rare; requires special bilateral agreement.
- 8th Freedom (Cabotage): Operate WITHIN a foreign State — most restricted; generally not granted. (e.g., foreign airline flying Mumbai-Delhi domestic route in India — NOT permitted).
- 9th Freedom: Stand-alone cabotage — operate within foreign State without routing from home State — extremely rare.

🟡 1st and 2nd Freedoms: Granted by the Two Freedoms Agreement (International Air Services Transit Agreement 1944) — most States party. 3rd-5th Freedoms: Negotiated bilaterally — not

automatically granted.

📌 *Example: India-USA bilateral Air Services Agreement grants Indian carriers (Air India) and US carriers (United, Delta) 3rd and 4th freedoms — right to fly passengers between India and USA. 5th freedom rights are rare and specifically negotiated.*

📌 **Case: Bermuda Agreement (1946, USA-UK)** — First major bilateral air services agreement — became template for global aviation bilaterals. Granted 3rd, 4th, and 5th freedoms between USA and UK. Replaced by Bermuda II (1977) and Open Skies Agreement (2007).

💡 **EXAM TIP:** Mnemonic: '1-Over, 2-Stop, 3-Go, 4-Return, 5-Between.' Or: 'OTSRB' = Overflight, Technical stop, Send passengers, Receive passengers, Between foreign States. Cabotage (8th/9th) = domestic routes in foreign State = almost never permitted.

Q6 — Legal Regime of Outer Space ★★★★★

Introduction

The Legal Regime of Outer Space is the body of international law governing the exploration, use, and exploitation of outer space, including the Moon and other celestial bodies. The primary source is the Outer Space Treaty 1967 — often called the 'Constitution of Outer Space Law'. Five major treaties form the corpus of space law.

The Five Major Space Law Treaties

1. Outer Space Treaty (OST) 1967 — The Constitution

- Full name: Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, including the Moon and Other Celestial Bodies.
- Art. I: Outer space = province of all mankind; exploration for benefit of all countries.
- Art. II: NO national appropriation of outer space, Moon, or celestial bodies — by claim of sovereignty, use, or occupation.
- Art. III: Activities in outer space conducted in accordance with international law.
- Art. IV: Prohibition on placing nuclear weapons or WMDs in orbit/on celestial bodies. Moon = peaceful purposes only.
- Art. VI: States internationally responsible for national space activities — whether by govt or private entities.
- Art. VII: State that launches = internationally liable for damage caused by space object.
- Art. VIII: State retains jurisdiction and control over space object and personnel — even in outer space.
- Art. IX: Avoid harmful contamination of outer space and Earth's environment.
- 167 parties — includes India, USA, Russia, China.

 OST Art. II = Non-appropriation principle = THE most fundamental rule of space law. No State can claim Moon or outer space as its territory.

2. Rescue Agreement 1968

- Full name: Agreement on the Rescue of Astronauts, the Return of Astronauts and the Return of Objects Launched into Outer Space.
- States must rescue and return astronauts in distress — regardless of nationality.
- Space objects and their component parts must be returned to the launching State.
- Astronauts = 'envoys of mankind' — must be protected.

 *Example: Apollo 13 (1970) emergency — astronauts in distress — international community prepared to assist — spirit of Rescue Agreement.*

3. Liability Convention 1972

- Full name: Convention on International Liability for Damage Caused by Space Objects.
- Art. II: ABSOLUTE LIABILITY — launching State absolutely liable for damage caused by its space object on the surface of the Earth or to aircraft in flight.

- Art. III: FAULT-BASED liability — for damage caused in outer space to another State's space object.
- Claims Commission mechanism for settlement.

 **Liability Convention Art. II: Launching State = ABSOLUTELY LIABLE for damage on Earth — no need to prove fault. This is the rule applied in 2024 Q15 scenario.**

 **Case: *Cosmos 954 Incident (Canada v. USSR, 1978)*** — Soviet nuclear-powered satellite Cosmos 954 re-entered atmosphere and deposited radioactive debris over Canadian territory. Canada claimed \$6 million (CAD). USSR paid \$3 million as ex gratia — applied Liability Convention principles of absolute liability.

4. Registration Convention 1976

- Full name: Convention on Registration of Objects Launched into Outer Space.
- States must maintain a national registry of space objects.
- UN Secretary-General maintains a public register — space objects identified by their State of registry.
- Facilitates attribution of liability — know which State launched what.

5. Moon Treaty 1979

- Full name: Agreement Governing the Activities of States on the Moon and Other Celestial Bodies.
- Extends CHM (Common Heritage of Mankind) principle to Moon and celestial bodies.
- No national appropriation of Moon resources.
- International regime to govern Moon resource exploitation when feasible.
- MAJOR LIMITATION: Only 18 ratifications — USA, Russia, China NOT parties. India not a party. Commercial space industry countries largely absent — making it near-dead letter.

UNISPACE Conferences

- UNISPACE I (1968): First UN conference on peaceful uses of outer space — Vienna.
- UNISPACE II (1982): Focused on practical benefits of space technology.
- UNISPACE III (1999): 'Space Benefits for Humanity in the 21st Century' — developing countries participation.
- UNISPACE+50 (2018): 50th anniversary — 'Space2030' agenda — sustainable development + space governance.

 **Example: Starlink satellites (SpaceX, USA): Over 5,000 satellites in LEO — regulated under US national space law + OST Art. VI (State responsible for private entities' activities). No int'l approval needed — raises space debris and frequency concerns.**

 **Case: *Outer Space Treaty Art. VI*** — States bear international responsibility for national activities in outer space, whether carried out by governmental or non-governmental entities — State must authorise and supervise private space activities.

 **EXAM TIP: 5 Treaties: 'OST-RLR-M' = Outer Space Treaty, Rescue, Liability, Registration, Moon Treaty. OST 1967 = Constitution. Liability = ABSOLUTE for Earth damage (Art. II). Moon Treaty = CHM but USA/Russia/China not party — practically irrelevant.**

Q7 — Moon Treaty 1979 ★★★★★

Definition

The Moon Treaty (1979) — formally the Agreement Governing the Activities of States on the Moon and Other Celestial Bodies — extends the Common Heritage of Mankind principle to the Moon, Mars, and other celestial bodies in the solar system (excluding Earth and Earth-orbiting objects).

Key Provisions

- Art. 11(1): The Moon and its natural resources = Common Heritage of Mankind.
- Art. 11(2): Moon NOT subject to national appropriation — by claim of sovereignty, use, or occupation.
- Art. 11(3): No private or public ownership of lunar resources.
- Art. 11(5): International regime to be established to govern exploitation of Moon resources when such exploitation becomes feasible.
- Art. 3: Moon to be used exclusively for peaceful purposes — no weapons, no military bases.
- Art. 7: States must take measures to prevent disruption of the Moon environment.
- Art. 13: Applies to all celestial bodies in solar system except Earth.

Why Moon Treaty is Largely Ineffective

- Only 18 ratifications as of 2024 — small developing States mostly.
- Major space powers — USA, Russia, China — NOT parties.
- India is NOT a party.
- US Artemis Accords (2020): USA created alternative framework — bilateral agreements for lunar activities — explicitly allows resource extraction — contradicts Moon Treaty CHM principle.
- US Commercial Space Launch Competitiveness Act 2015: American citizens may own resources extracted from space — Moon Treaty would prohibit this.

 Moon Treaty paradox: Strong CHM principles but only 18 ratifications — major space nations absent. Artemis Accords (2020) = USA's counter-framework with 40+ signatories. Real-world space law = OST 1967 + national space laws + Artemis Accords.

 *Example: Chandrayaan-3 (India, 2023): India landed on Moon's south pole — first country to do so. India operates under OST 1967 (party) but NOT Moon Treaty. Resources India collects may not be governed by CHM under current framework.*

 EXAM TIP: Moon Treaty = Great principles, No major powers. Key contrast: OST Art. II (no appropriation of space) = widely accepted; Moon Treaty Art. 11 (CHM for resources) = NOT accepted by major spacefaring States. Artemis Accords = USA's alternative.

Q8 — India's Recent Space Missions & Space Law ★★★★★

Introduction

India has emerged as a major spacefaring nation. All Indian space activities are subject to the Outer Space Treaty 1967 (which India ratified in 1982) and India's own Space Activities Bill (in progress). ISRO (Indian Space Research Organisation) conducts space activities on behalf of the Government of India.

Key Indian Space Missions

1. Mangalyaan (Mars Orbiter Mission) — 2013-2014

- India's first interplanetary mission — Mars Orbiter launched November 2013; entered Mars orbit September 2014.
- India became first country to reach Mars on its FIRST attempt.
- India became first Asian country to reach Mars orbit.
- Cost: ~₹450 crore (\$74 million) — cheapest Mars mission in history.
- International law: Governed by OST Art. I (exploration for benefit of all mankind) + Art. IX (avoid harmful contamination).

2. Chandrayaan-1 — 2008

- India's first lunar mission — discovered water molecules on the Moon.
- Significant scientific contribution to understanding Moon's geology.

3. Chandrayaan-2 — 2019

- Orbiter, lander (Vikram), rover (Pragyan) — lander crashed during descent.
- Orbiter continues to function successfully.

4. Chandrayaan-3 — 2023 (HISTORIC)

- Launched July 14, 2023; soft-landed on Moon's south polar region — August 23, 2023.
- India became FIRST country to land near Moon's south pole.
- India became 4th country to achieve soft landing on Moon (after USSR, USA, China).
- Rover Pragyan explored lunar surface — confirmed presence of sulphur, oxygen, iron.
- International law implication: Landing site named 'Shiv Shakti Point' — under OST Art. VIII India retains jurisdiction over Chandrayaan-3 spacecraft and instruments on Moon.

5. Gaganyaan (Human Spaceflight Mission) — Upcoming 2025

- India's first crewed spaceflight mission — planned to send Indian astronauts to Low Earth Orbit.
- If successful: India becomes 4th country to independently send humans to space (after USSR/Russia, USA, China).
- Legal framework: Rescue Agreement 1968 applies — other States obligated to rescue Indian astronauts in distress.

6. Aditya-L1 — 2023

- India's first solar mission — launched September 2, 2023.
- Studies Sun's corona from Lagrange Point 1 (L1) — 1.5 million km from Earth.

India's Space Law Framework

- OST 1967: Ratified 1982 — India responsible for all national space activities (Art. VI).
- Rescue Agreement 1968: Ratified — India must rescue astronauts.
- Liability Convention 1972: Ratified — India absolutely liable for damage caused by Indian space objects on Earth.
- Registration Convention 1976: Ratified — India registers its space objects.
- Moon Treaty 1979: NOT ratified by India.
- Space Activities Bill: India's draft domestic space law — pending enactment — will regulate private space sector (ISRO commercialisation, NewSpace India Limited).

 **EXAM ALERT:** India = 1st country to land near Moon's south pole (Chandrayaan-3, August 23, 2023). 4th country to soft-land on Moon. OST 1967 ratified. Moon Treaty NOT ratified.

 *Example: Chandrayaan-3 landing site 'Shiv Shakti Point' — under OST Art. VIII, India retains jurisdiction over spacecraft but cannot claim territorial sovereignty over the landing site (OST Art. II).*

 **EXAM TIP:** Space mission facts for exam: Mangalyaan = first Asian Mars orbit, 2014. Chandrayaan-3 = first Moon south pole landing, August 23, 2023. Gaganyaan = first crewed mission (upcoming). Aditya-L1 = solar mission, 2023. ISRO founded: 1969.

MARITIME ZONES QUICK REFERENCE (UNCLOS 1982)

Zone	Distance	Sovereignty / Rights	Key Rule
Internal Waters	Within baselines	Full sovereignty — same as land territory	No right of innocent passage
Territorial Sea	0-12 NM from baseline	Full sovereignty — subject to innocent passage for ships	UNCLOS Art. 3; right of innocent passage (Art. 17)
Contiguous Zone	12-24 NM	Enforce customs, immigration, fiscal, sanitary laws	UNCLOS Art. 33 — preventive/punitive jurisdiction only
EEZ	12-200 NM	Sovereign rights over natural resources; jurisdiction over installations	UNCLOS Art. 56; other States retain navigation + overflight freedoms
Continental Shelf	Up to 200 NM (extended 350 NM)	Sovereign rights over seabed resources (non-living + sedentary living)	UNCLOS Art. 76-77; automatic rights — no occupation needed
High Seas	Beyond 200 NM (or EEZ)	Freedom of all States — no sovereignty	UNCLOS Art. 87 — 6 freedoms
The Area	Seabed beyond national jurisdiction	Common Heritage of Mankind — managed by ISA	UNCLOS Art. 136-137; no national appropriation

INNOCENT PASSAGE (Art. 17-19): Right of ships to pass through territorial sea continuously and expeditiously without prejudice to peace, good order, security. Submarines must navigate on surface. No right of innocent passage for AIRCRAFT over territorial sea — unlike ships.



PART B — LONG ESSAYS (15 Marks Each)

4-5 pages per answer. Headings essential. 3+ cases. Conclude with legal basis. Time: 20-22 min.

Essay B1 — UNCLOS 1982: Evolution, Maritime Zones & Freedoms



I. Introduction

The United Nations Convention on the Law of the Sea (UNCLOS) 1982 — often called the 'Constitution of the Oceans' — represents the most comprehensive codification of international maritime law. Spanning 320 Articles and 9 Annexes, it balances the sovereign rights of coastal States over adjacent ocean zones against the freedom of all States to navigate and use the high seas. India ratified UNCLOS in 1995.

■ UNCLOS 1982: 320 Articles + 9 Annexes. Entered into force 1994. Called 'Constitution of the Oceans'. 168 State parties.

II. Historical Evolution of Law of the Sea

- Pre-17th century: States claimed varying breadths of sea — no uniform rule.
- Hugo Grotius, *Mare Liberum* (1609): Freedom of seas — influential but contested.
- Cannon-shot rule / 3-mile rule (18th century): Territorial sea = cannon range from shore.
- Hague Conference 1930: First codification attempt — failed on territorial sea breadth.
- UNCLOS I (Geneva, 1958): 4 conventions — Territorial Sea; High Seas; Continental Shelf; Fishing. No agreement on territorial sea width.
- UNCLOS II (1960): Still no agreement on width.
- UNCLOS III (1973-1982): 9 years; 160 States; package deal — produced comprehensive UNCLOS 1982.

🏛️ **Case:** *North Sea Continental Shelf Cases (ICJ, 1969)* — Equidistance not customary law — equitable principles govern. Germany not bound by 1958 Convention it had not ratified. ICJ applied general law.

III. Maritime Zones Under UNCLOS 1982

UNCLOS creates a graduated regime of zones moving seaward from the coastal State's baseline:

A. Territorial Sea (Arts. 3-33)

- Breadth: Up to 12 NM from baseline (Art. 3).
- Sovereignty: Full sovereignty — same as land territory. Extends to seabed, subsoil, airspace.
- Innocent passage: Foreign ships have right of innocent passage (Art. 17) — continuous, expeditious, not prejudicial to peace.
- Submarines must navigate on surface and show their flag (Art. 20).
- NO right of innocent passage for aircraft — complete airspace sovereignty.

B. Contiguous Zone (Art. 33)

- Breadth: Up to 24 NM from baseline.
- Coastal State may exercise control to: prevent infringement of customs, fiscal, immigration, sanitary laws; punish infringements committed in territorial sea.
- NOT sovereignty — functional jurisdiction only in these specific matters.

C. Exclusive Economic Zone — EEZ (Arts. 55-75)

- Breadth: Up to 200 NM from baseline.
- Sovereign rights (not sovereignty) over: (a) Exploring and exploiting, conserving and managing living and non-living resources of seabed, subsoil, and superjacent waters; (b) Economic activities (energy from water, currents, winds).
- Jurisdiction over: Marine scientific research; artificial islands and structures; marine environment protection.
- Other States retain: Freedom of navigation, overflight, laying cables/pipelines.
- India's EEZ: ~2.37 million sq km — covers Arabian Sea, Indian Ocean, Bay of Bengal.

🔗 **Case: *Continental Shelf (Libya v. Malta)* (ICJ, 1985)** — ICJ applied equitable principles to delimit EEZ and continental shelf between Libya and Malta — proportionality considered.

D. Continental Shelf (Arts. 76-85)

- Natural prolongation of land territory under sea — up to 200 NM or natural prolongation (up to 350 NM with CLCS approval).
- Sovereign rights over seabed and subsoil resources — non-living + sedentary living organisms.
- Rights AUTOMATIC — no occupation or proclamation needed (Art. 77(3)).
- Coastal State does NOT have sovereignty — only sovereign RIGHTS over resources.

E. High Seas (Arts. 86-120)

- All parts of sea not included in EEZ, territorial sea, or internal waters.
- Art. 89: No State may validly purport to subject any part of the high seas to its sovereignty.
- Six freedoms (Art. 87): Navigation, Overflight, Fishing, Scientific research, Artificial islands, Cables/Pipelines.
- Flag State exclusive jurisdiction over its ships — but universal jurisdiction for piracy.

F. The Area (Arts. 133-191)

- Seabed and ocean floor beyond national jurisdiction.
- Common Heritage of Mankind (Art. 136) — International Seabed Authority administers.
- Resources managed for benefit of mankind — developing States get particular consideration.

IV. Dispute Settlement (Part XV)

- UNCLOS creates compulsory dispute settlement — major innovation.
- ITLOS (International Tribunal for the Law of the Sea) — Hamburg; 21 judges.
- ICJ — available as alternative.
- Annex VII Arbitral Tribunals — most used.
- Seabed Disputes Chamber — for The Area disputes.

🔗 **Case: *Philippines v. China* (Arbitral Tribunal, 2016)** — Tribunal held China's 'nine-dash line' claim incompatible with UNCLOS — China's historic rights in South China Sea have no legal basis. China refused to participate — tribunal still decided.

V. Conclusion

UNCLOS 1982 represents the most successful exercise in international law-making. By establishing clear maritime zones, codifying freedoms of the high seas, creating the CHM principle for The Area, and providing for compulsory dispute settlement, it has brought order to the world's oceans. While challenges remain — South China Sea disputes, climate change impacts on baselines, deep-sea mining governance — UNCLOS remains the foundational framework. India, as a major maritime State, benefits enormously from its EEZ and continental shelf rights under UNCLOS.

Essay B2 — Legal Regime of Airspace: Conventions & Five Freedoms (2024 Q11)



I. Introduction

The legal regime governing airspace is fundamentally different from that of the high seas. While the seas enjoy freedom of navigation, airspace above national territory is subject to complete and exclusive State sovereignty — there is no right of innocent passage for aircraft. The regime has evolved through four major conventions — Paris 1919, Havana 1928, Warsaw 1929, and Chicago 1944 — culminating in the near-universal Chicago Convention that governs international civil aviation today.

■ **Core principle: Complete and exclusive sovereignty over national airspace — Chicago Convention Art. 1 (replaces Paris Convention Art. 1). NO innocent passage for aircraft — unlike ships.**

II. Theoretical Basis of Airspace Sovereignty

- Air does not belong to any State by nature — but the column of air above national territory is subject to State sovereignty by the principle of subjacent territory (what is below = what is above).
- Rationale: Security (aircraft can be weapons); customs and immigration enforcement; economic interests.
- Height limit: Not defined in treaties — outer space begins approximately 100 km (Kármán Line) — above which sovereignty does not extend (Outer Space Treaty 1967).

III. Evolution Through Key Conventions

A. Paris Convention 1919

- First multilateral convention — post-WW1; 27 contracting States (League of Nations members).
- Art. 1: 'Every Power has complete and exclusive sovereignty over the airspace above its territory.'
- Established ICAN (precursor to ICAO).
- No scheduled service without special permission.
- Limitation: European/colonial powers only; excluded non-League members.

B. Havana Convention 1928

- Pan-American equivalent — Western Hemisphere.
- Confirmed sovereignty principle; rules on aircraft nationality and documents.
- Superseded by Chicago for signatories that joined Chicago.

C. Warsaw Convention 1929 (Liability in Air Carriage)

- Specifically addresses LIABILITY in international air carriage — not sovereignty.
- Original: Carrier presumptively liable for passenger death/injury up to specified limits.
- Hague Protocol 1955: Doubled limits. Montreal Convention 1999: Modernised — unlimited liability for death/injury.
- Montreal Convention 1999: Two-tier system — (1) Strict liability up to SDR 113,100 (no fault

needed); (2) Above that — carrier liable unless proves no negligence.

- Airline passenger rights — baggage, delay, cancellation — governed by Montreal 1999.

 *Example: Air India passenger dies in crash — family can claim compensation under Montreal Convention 1999. India is party — no cap applies for death under strict liability tier.*

D. Chicago Convention 1944 — The Current Framework

- Adopted at Chicago Conference (Nov-Dec 1944) — 52 States.
- Full name: Convention on International Civil Aviation.
- Replaced Paris Convention — applies globally (193 ICAO member States).
- Core principles:
 - Art. 1: Complete and exclusive sovereignty over airspace above territory.
 - Art. 2: Territory = land area + territorial waters.
 - Art. 3: Applies to CIVIL aircraft only — State aircraft excluded.
 - Art. 5: Non-scheduled flights have right to fly across territory and make non-traffic stops without prior permission (subject to right to require landing).
 - Art. 6: No scheduled international air service may operate without permission.
 - Art. 12: Each State responsible for enforcing its air traffic rules.
 - ICAO established — UN specialized agency; headquarters Montreal, Canada.
- Annexes 1-19: Technical standards (navigation, airworthiness, accident investigation, etc.).

 **Case: KAL 007 (1983)** — Korean airliner shot down by Soviet jets — led to ICAO amendment: Art. 3 bis added — States shall not use weapons against civil aircraft in flight that endangers persons.

IV. The Five Freedoms of Air

The Chicago Convention itself created only the Two Freedoms Agreement (1st + 2nd freedoms — transit and technical stop). The remaining freedoms (3rd-5th) are negotiated bilaterally through Air Services Agreements (ASAs).

- 1st Freedom: Right to fly over foreign territory without landing (transit).
- 2nd Freedom: Right to make technical stops (refuelling) without traffic rights.
- 3rd Freedom: Carry passengers from home State to foreign State.
- 4th Freedom: Carry passengers from foreign State to home State.
- 5th Freedom: Carry traffic between two foreign States on route starting/ending in home State.

 1st + 2nd Freedoms = International Air Services Transit Agreement 1944 — most States party. 3rd-5th Freedoms = must be negotiated bilaterally. Cabotage (8th/9th freedoms) — domestic routes in foreign State — generally not granted.

V. High Seas and Outer Space Airspace

- Airspace over high seas: NOT subject to any State's sovereignty — aircraft have freedom of overflight.
- Airspace over EEZ: Coastal State has NO sovereignty over airspace above EEZ — only surface and seabed resource rights. Aircraft can fly freely over foreign EEZ.
- Outer space: No State sovereignty — begins at Kármán Line (~100 km). Outer Space Treaty

1967 applies.

VI. Conclusion

The legal regime of airspace represents a carefully constructed balance between sovereign control and commercial necessity. From Paris 1919's first codification to Chicago 1944's near-universal framework, international aviation law has evolved to enable the global aviation industry while preserving States' fundamental right to control their airspace. The Five Freedoms framework — though not creating automatic rights — provides the template for the thousands of bilateral air services agreements that underpin global air travel. India, as one of the world's fastest-growing aviation markets, operates firmly within this framework.

Essay B3 — Legal Regime of Outer Space: Treaties & Principles ★★★★★

I. Introduction

The exploration of outer space — once the exclusive domain of superpowers during the Cold War — has become a global enterprise involving State agencies, private corporations, and international organisations. The legal framework governing outer space is built upon five international treaties negotiated between 1967 and 1979, with the Outer Space Treaty 1967 as the constitutional document. Today, with commercial space launches, Moon landing missions (including India's Chandrayaan-3), and plans for Mars colonisation, space law faces unprecedented challenges.

■ Five Space Treaties: OST 1967 → Rescue 1968 → Liability 1972 → Registration 1976 → Moon Treaty 1979. OST = Constitution of outer space law.

II. Fundamental Principles of Outer Space Law

The following principles, derived from the five treaties and UNGA resolutions, form the corpus of space law:

- 1. Province of All Mankind (OST Art. I): Outer space = province of all mankind; exploration for benefit of all countries regardless of economic/scientific development.
- 2. Non-appropriation (OST Art. II): Outer space, Moon, celestial bodies NOT subject to national appropriation by sovereignty claim, use, or occupation. No State or private entity can own outer space.
- 3. Freedom of Exploration (OST Art. I): All States free to explore outer space without discrimination.
- 4. Peaceful Use (OST Art. IV): No weapons of mass destruction in orbit; Moon exclusively for peaceful purposes.
- 5. State Responsibility for Private Activities (OST Art. VI): States internationally responsible for ALL national space activities — government AND private.
- 6. Liability (OST Art. VII + Liability Convention 1972): Launching State liable for damage caused by space object.
- 7. Jurisdiction (OST Art. VIII): State retains jurisdiction and control over space objects and personnel.
- 8. Environmental Responsibility (OST Art. IX): Avoid harmful contamination of space and Earth.

III. The Five Space Treaties — Detailed Analysis

A. Outer Space Treaty 1967 — Constitution

Negotiated against Cold War backdrop — after Sputnik (1957) and race to Moon. Opened for signature January 27, 1967. 167 parties.

- Art. I: Exploration for benefit of all mankind — freedom of exploration.
- Art. II: Non-appropriation — THE most fundamental rule.
- Art. IV: No WMDs in orbit; Moon = peaceful purposes only.
- Art. VI: State responsibility for national activities — must authorise private operators.
- Art. VII: Launching State = internationally liable for damage.
- Art. VIII: Jurisdiction follows registration — not physical possession.

🏛️ **Case: Outer Space Treaty Art. VI Application** — USA's Commercial Space Launch Act 2015 allows private companies to own space resources — controversial compatibility with OST Art. II (non-appropriation). Ongoing debate in space law.

B. Rescue Agreement 1968

- Astronauts = 'envoys of mankind' — must be assisted regardless of nationality.
- States must render all assistance to distressed astronauts.
- Space objects must be returned to the launching State on request.

📌 *Example: If Indian astronaut (Gaganyaan) encounters distress over Pacific Ocean — any nearby State is obligated to render assistance under Rescue Agreement.*

C. Liability Convention 1972

- Art. II: ABSOLUTE LIABILITY — launching State liable for damage caused by space object on Earth or to aircraft in flight — no need to prove fault.
- Art. III: FAULT-BASED liability — for damage in outer space between two space objects.
- 'Launching State' = State that launches, procures launching, from whose territory launched, or whose facility used.
- Claims procedure: Diplomatic channel to launching State; if no settlement → Claims Commission.

🏛️ **Case: Cosmos 954 (1978)** — Soviet satellite with nuclear reactor crashes in Canada — radioactive debris over Northwest Territories. Canada claimed CAD 6 million under Liability Convention. Settled ex gratia for CAD 3 million — closest real-world application of Liability Convention.

🏛️ **Case: 2009 Iridium-Cosmos Collision** — US Iridium 33 and Russian Cosmos 2251 collide in orbit — first major in-orbit collision. No Liability Convention claim resolved — highlights gap in fault-based space liability regime.

D. Registration Convention 1976

- States must register space objects in national registry AND with UN Secretary-General.
- UN maintains public register — accessible to all.
- Facilitates identification for liability purposes.
- India registers its satellites (IRS, INSAT, GSAT series) and space probes (Chandrayaan, Mangalyaan, Aditya-L1).

E. Moon Treaty 1979

- Extends CHM to Moon and celestial bodies — no national/private appropriation.
- Only 18 ratifications — USA, Russia, China, India NOT parties.
- Near dead-letter — major space powers operating outside its framework.
- Artemis Accords (2020): USA-led alternative — bilateral agreements allowing resource utilization.

IV. Emerging Issues in Space Law

- Space Debris: 27,000+ pieces of tracked debris in orbit — no binding treaty; UN Space Debris Mitigation Guidelines (2007) are voluntary.
- Private/Commercial Space: SpaceX, Blue Origin, Virgin Galactic — regulated under national law;

State remains internationally responsible under OST Art. VI.

- Resource Extraction: US law (2015) and Luxembourg law (2017) allow private ownership of extracted resources — compatibility with OST Art. II debated.
- Mega-constellations: Starlink (5,000+ satellites), Amazon Kuiper — radio frequency interference and space debris concerns.
- Space Tourism: No specific treaty — ICAO jurisdiction up to Kármán Line; OST above.

V. India's Space Law Framework

- OST 1967 ratified (1982); Rescue Agreement ratified; Liability Convention ratified; Registration Convention ratified.
- Moon Treaty NOT ratified.
- Space Activities Bill (draft): Will govern licensing of private space activities — ISRO commercialisation, IN-SPACe (Indian National Space Promotion and Authorisation Centre) established 2020.
- Chandrayaan-3 (2023): First Moon south pole landing — OST Art. VIII — India retains jurisdiction; OST Art. II — cannot claim sovereignty.

VI. Conclusion

The international legal regime of outer space, built around the Outer Space Treaty 1967, reflects Cold War era principles — freedom of exploration, non-militarisation, and the province of all mankind. As the space age enters its commercial phase, with private companies launching satellites, planning Moon mining, and targeting Mars, the existing framework faces stress. The Moon Treaty's failure to attract major space powers shows the limits of progressive treaty-making against national commercial interests. India's Chandrayaan-3 success places it at the forefront of spacefaring nations — making it both a beneficiary of and responsible actor under the current space law framework.

PART C — PROBLEM QUESTIONS (IRAC Method, 10 Marks Each)

Label each section: ISSUE / RULE / APPLICATION / CONCLUSION. Time: 15 min each.

IRAC 1 — Space Object Falls on State N (DIRECT from 2024 Paper Q15)



Scenario (2024 Q15): Country M launched an object into space for research and experiments. The launch did not go as planned and a portion of the object ended up falling onto the territory of State N. This resulted in loss of lives and property. Is Country M legally responsible for the losses suffered by State N? Provide explanations.

I — Issue

(1) Whether Country M is internationally liable for damage caused by its space object falling on State N's territory. (2) What standard of liability applies. (3) What remedies are available to State N.

R — Rule

- Outer Space Treaty 1967, Art. VII: Each State Party that launches or procures the launching of an object into outer space is internationally liable for damage to another State Party or to its natural or juridical persons by such object or its component parts.
- Liability Convention 1972, Art. I: 'Damage' = loss of life, personal injury, or other impairment of health; or loss of or damage to property of States, persons, or organisations.
- Liability Convention 1972, Art. II: ABSOLUTE LIABILITY — 'A launching State shall be absolutely liable to pay compensation for damage caused by its space object on the surface of the Earth or to aircraft in flight.'
- Liability Convention 1972, Art. III: Fault-based liability for damage in outer space.
- Art. I(c): 'Launching State' = State that launches or procures launching; State from whose territory/facility object launched.
- Art. XII: Compensation determined by principles of justice and equity to provide reparation.
- Art. XIV: Claims submitted through diplomatic channels; Claims Commission if no settlement in 1 year.

🔗 **Case:** *Cosmos 954 Incident (Canada v. USSR, 1978)* — Soviet nuclear satellite crashed in Canada — debris over 124,000 sq km. Canada invoked Liability Convention — absolute liability applied. Settled for CAD 3 million. DEFINITIVE precedent for Art. II absolute liability.

A — Application

Step 1 — Jurisdiction and applicable law: Country M launched the space object — it qualifies as the 'launching State' under Art. I(c) of the Liability Convention 1972. Both OST Art. VII and Liability Convention Art. II apply.

Step 2 — Standard of liability: Since the damage occurred on the SURFACE OF EARTH (State N's territory), Article II of the Liability Convention applies — ABSOLUTE LIABILITY. Country M does NOT need to have been negligent or at fault. The mere fact that its space object caused damage on Earth makes it liable. No exceptions are available for research/experimental launches.

Step 3 — Nature of damage: Loss of lives and property — both constitute 'damage' under Art. I of the Liability Convention. Country M must pay compensation for: (a) Loss of life of victims; (b) Personal injury compensation; (c) Property damage and loss.

Step 4 — Claim procedure: State N should present a claim through diplomatic channels to Country M (Art. IX Liability Convention). If Country M disputes liability or amount, a Claims Commission may be

established (Art. XIV) — composed of one member from each party + a third agreed member.

Step 5 — Defences available to Country M: Under Art. VI Liability Convention — exoneration from ABSOLUTE liability ONLY if damage results from gross negligence or intentional act of the claimant State (State N) — no such facts present here. Country M's 'unplanned' launch is NOT a defence.

C — Conclusion

■ **CONCLUSION: YES** — Country M is **ABSOLUTELY LIABLE** for the damage caused to State N under Liability Convention 1972 Art. II. Absolute liability means fault/negligence need not be proved. Country M must pay full compensation for loss of lives, injury, and property damage. Procedure: State N files diplomatic claim → if unresolved within 1 year → Claims Commission. Precedent: Cosmos 954 (Canada v. USSR, 1978) — settled for CAD 3 million. The 'research and experiment' purpose of the launch provides no exoneration under Art. II.

IRAC 2 — Coastal State Rights in EEZ: Fishing by Foreign Vessel ★★★★★☆

Scenario: State A's fishing vessels are found fishing in the Exclusive Economic Zone (EEZ) of coastal State B — 150 NM from State B's baseline. State A claims this is the high seas and their vessels have freedom of fishing. State B claims exclusive rights. Who is correct?

I — Issue

Whether State A's fishing vessels have a right to fish in State B's EEZ, which is located 150 NM from State B's baseline, or whether State B has exclusive rights over fishing in that zone under UNCLOS 1982.

R — Rule

- UNCLOS 1982, Art. 55: The EEZ is an area beyond and adjacent to the territorial sea, subject to the specific legal regime of Part V.
- UNCLOS 1982, Art. 57: Breadth of EEZ shall not exceed 200 NM from baseline.
- UNCLOS 1982, Art. 56(1)(a): Coastal State has sovereign rights in EEZ for the purpose of EXPLORING AND EXPLOITING, CONSERVING AND MANAGING natural resources — living and non-living — of the waters, seabed, and subsoil.
- UNCLOS 1982, Art. 62: If coastal State does not have capacity to harvest entire allowable catch, it shall give other States access to surplus — only if surplus exists.
- UNCLOS 1982, Art. 73: Coastal State may board, inspect, arrest, and judicially proceed against vessels violating its EEZ laws.
- UNCLOS 1982, Art. 87: Freedom of fishing applies to HIGH SEAS — NOT to EEZ. EEZ is a distinct zone (not high seas).

🏛️ **Case:** *Philippines v. China (Arbitral Tribunal, 2016)* — Tribunal confirmed EEZ sovereign rights — China's interference with Philippine fishing in Philippines' EEZ violated UNCLOS. EEZ ≠ high seas.

A — Application

Step 1 — Location: 150 NM from State B's baseline falls WITHIN State B's EEZ (which extends up to 200 NM). It is NOT the high seas — State A's characterisation is INCORRECT.

Step 2 — State B's rights: Under UNCLOS Art. 56(1)(a), State B has SOVEREIGN RIGHTS over living resources in its EEZ — including fish. These are exclusive rights — no other State may fish in State B's EEZ without State B's permission.

Step 3 — State A's claim: State A's claim that the EEZ is 'high seas' where freedom of fishing applies is LEGALLY WRONG. The EEZ is a distinct zone — not high seas. High seas begin beyond 200 NM (Art. 86).

Step 4 — State A's possible rights: Only if State B has declared a surplus in its allowable catch and allocated access to State A under Art. 62 agreements would State A's vessels have any right to fish. No such facts are present.

Step 5 — State B's enforcement: State B may board, inspect, arrest State A's vessels under Art. 73 UNCLOS. Prompt release required on posting of bond (Art. 73(2)).

C — Conclusion

🟡 **CONCLUSION:** State B is CORRECT. State A's vessels are illegally fishing in State B's EEZ — 150

NM falls within the 200 NM EEZ. State B has exclusive sovereign rights over living resources in its EEZ (UNCLOS Art. 56). Freedom of fishing (Art. 87) applies to HIGH SEAS only — beyond 200 NM. State B may enforce its EEZ laws, arrest the vessels, and impose penalties. State A's fishing vessels should be released promptly on bond (Art. 73(2)). Precedent: Philippines v. China (2016) — EEZ sovereign rights upheld.

QUICK REVISION SHEET — UNIT IV

Critical Numbers — Maritime Zones

Baseline → Territorial Sea: 12 NM (UNCLOS Art. 3)
Baseline → Contiguous Zone: 24 NM (UNCLOS Art. 33)
Baseline → EEZ: 200 NM (UNCLOS Art. 57)
Continental Shelf: up to 200 NM, extended to 350 NM possible (Art. 76)
High Seas: beyond 200 NM (Art. 86)
The Area: seabed beyond national jurisdiction (Art. 1(1))
Innocent Passage: Art. 17-19 UNCLOS (ships only — NOT aircraft)
Hot Pursuit: Art. 111 UNCLOS
6 Freedoms of High Seas: Art. 87 UNCLOS

Critical Numbers — Airspace & Space

Paris Convention: 1919 — first airspace sovereignty codification
Havana Convention: 1928 — Pan-American
Warsaw Convention: 1929 (liability in air carriage)
Chicago Convention: 1944 — current framework; ICAO established
Montreal Convention: 1999 — modern air carriage liability
ICAO Headquarters: Montreal, Canada
Kármán Line: ~100 km — outer space begins

Outer Space Treaty: 1967 (167 parties)
Rescue Agreement: 1968
Liability Convention: 1972 — Art. II = ABSOLUTE liability for Earth damage
Registration Convention: 1976
Moon Treaty: 1979 — 18 ratifications; USA/Russia/China NOT parties
UNISPACE+50: 2018

India Space: Mangalyaan = 2014; Chandrayaan-3 = August 23, 2023; Aditya-L1 = 2023
Cosmos 954 Settlement: CAD 3 million (Canada v. USSR, 1978)

Top Cases — One Liner Each

- North Sea Continental Shelf (ICJ, 1969): Equidistance not customary — equitable principles govern delimitation.
- Corfu Channel (ICJ, 1949): Innocent passage through international straits affirmed.
- Philippines v. China (2016): China's nine-dash line incompatible with UNCLOS — EEZ ≠ high seas.
- ITLOS Advisory Opinion (2011): Sponsoring States bear due diligence obligation for The Area mining.
- Cosmos 954 (1978): Soviet satellite debris in Canada — absolute liability applied — CAD 3 million paid.
- KAL 007 (1983): Shooting down civil aircraft leads to Chicago Art. 3 bis — weapons prohibition.
- Bermuda Agreement (1946): First bilateral air services agreement — template for 5 freedoms

negotiation.

- Lotus Case (PCIJ, 1927): High seas collision jurisdiction — later modified by UNCLOS Art. 97.

Memory Mnemonics

MARITIME ZONES: 'TCC-ECS-A' = Territorial sea, Contiguous zone, Continental shelf, EEZ, Continental shelf extended, High Seas, The Area

6 HIGH SEAS FREEDOMS: 'NOFACS' = Navigation, Overflight, Fishing, Artificial islands, Cables, Scientific research

5 AIR FREEDOMS: 'OTSRB' = Overflight, Technical stop, Send passengers, Receive passengers, Between foreign States

AIRSPACE CONVENTIONS: 'PHWC' = Paris 1919, Havana 1928, Warsaw 1929, Chicago 1944

5 SPACE TREATIES: 'OST-RLR-M' = Outer Space Treaty, Rescue, Liability, Registration, Moon Treaty

INDIA SPACE FACTS: 'MCC-AG-A' = Mangalyaan (2014), Chandrayaan-1/2/3, Gaganyaan (upcoming), Aditya-L1 (2023)

TRAP QUESTIONS

- TRAP 1: 'Is EEZ the same as high seas?' — NO. EEZ (0-200 NM) = coastal State sovereign rights over resources. High seas = beyond 200 NM = freedom for all. EEZ ≠ high seas.
- TRAP 2: 'Do aircraft have innocent passage rights in territorial sea airspace?' — NO. Ships = innocent passage. Aircraft = NO right of passage — complete sovereignty. Need permission (Chicago Art. 6 for scheduled flights).
- TRAP 3: 'Is India a party to the Moon Treaty?' — NO. India ratified OST, Rescue, Liability, Registration — but NOT Moon Treaty 1979.
- TRAP 4: 'What liability standard for space object damaging another State on Earth?' — ABSOLUTE (Liability Convention Art. II). No fault needed. Cosmos 954 = precedent.
- TRAP 5: 'Are all 5 air freedoms automatically granted under Chicago Convention?' — NO. 1st + 2nd = Two Freedoms Agreement. 3rd-5th = bilateral negotiation. Chicago itself does not grant commercial traffic rights.
- TRAP 6: 'Does continental shelf sovereignty include water column?' — NO. Continental shelf = SEABED and SUBSOIL resources only. Water column above continental shelf (beyond territorial sea) = EEZ or high seas rules apply.
- TRAP 7: 'Is the Moon Treaty effective international law?' — PRACTICALLY NO — only 18 ratifications; USA, Russia, China absent. OST 1967 is the real framework.

Last-Minute Checklist

-  UNCLOS zones: Memorise all 7 zones with distances — territorial sea (12), contiguous (24), EEZ (200), continental shelf (200/350), high seas (beyond 200), The Area
-  2024 Q10 (Evolution of Law of Sea): Grotius → Cannon-shot → Hague 1930 → UNCLOS I 1958 → UNCLOS II 1960 → UNCLOS 1982
-  2024 Q11 (Airspace): Paris 1919 → Havana 1928 → Warsaw 1929 (liability only) → Chicago 1944 (current). Chicago Art. 1 = complete sovereignty

-  2024 Q15 (Space liability): Liability Convention Art. II = ABSOLUTE liability on Earth. Country M = liable. Cosmos 954 = cite.
-  Five Freedoms: Name all 5 with one-line description each. 1st + 2nd = automatic (Two Freedoms Agreement). 3rd-5th = bilateral.
-  India space: Chandrayaan-3 = August 23, 2023 = first Moon south pole landing. OST ratified. Moon Treaty NOT ratified.

 2024 PAPER DIRECT HITS FROM THIS UNIT:

Part B Q10: Evolution of Law of the Sea — answered in Essay B1

Part B Q11: Airspace legal framework — answered in Essay B2

Part C Q15: Space object falls on State N — answered in IRAC 1

All three real exam questions fully covered!

— End of Unit IV: Law of the Sea · Airspace · Outer Space —

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